SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
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DR. PETER DASZAK, Ph.D.,

as Plaintiff,

v. Index No. 164611/2025

ECOHEALTH ALLIANCE INC., et al.,

as Defendants.

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PLAINTIFF'S MEMORANDUM OF LAW IN OPPOSITION TO DEFENDANTS' MOTION TO DISMISS

Plaintiff Dr. Peter Daszak, Ph.D. ("Dr. Daszak" or "Plaintiff Daszak") and the accompanying affidavit of Dr. Peter Daszak, PH.D., sworn to May 15, 2026, respectfully submits this Memorandum of Law in (a) opposition to the Defendants' motion to dismiss and (b) his objections the Affidavit of Joseph Anci, Esq.

PRELIMINARY STATEMENT

Represented by able counsel, defendants would now cure their blatantly unlawful conduct. So, defendants now move to dismiss the plaintiff's Verified Complaint. The defendants move this court, on the basis of nothing more than the transcripts of an inadmissible congressional hearing for the purpose of excusing the fact that they fired their own CEO without any stated cause and terminated his employment in violation of (1) their written agreement to pay him severance, (2) their own by-laws, (3) and in violation of the New York State and New York City Human Rights laws. With the benefit of patently inadmissable congressional transcripts - to which they pay scant adherence - defendants ignore the Verified Complaint and the law and ask this Court to absolve their conduct on the grounds they enjoy immunity as a Not-For-Profit entity.

Under the governing law, the motion ought to be denied.

The defendants contracted in writing to pay the plaintiff severance. The defendants fired the Plaintiff without any stated cause because he was old and highly paid. They have now manufactured, on the basis of inadmissible documents, a so-called cause.

The motion to dismiss should be denied in all respects.

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ARGUMENT

I.

DEFENDANTS' MOTION FAILS UNDER CPLR 3211(a)(1).

Defendants' motion is bottomed entirely upon unauthenticated extracts from various congressional and administrative hearings.

Counsel's affidavit appends numerous extensive documents. Yet, those documents are not Orders of any Court, are not authenticated by the proponent for purpose of judicial notice under the rules of evidence under CPLR 4511[1] and should be disregarded on this motion.

Defendants attempts to lard this record with scurrilous, unproven and unauthenticated papers should neither be entertained nor countenanced. Much as the defendants would avoid liability, this is not a tardy partisan Congressional proceeding convened for the purpose of ascribing blame to plaintiff for Covid-19,

As this Court has held,

[1] CPLR 4511(d) Evidence to be received on matter to be judicially noticed. In considering whether a matter of law should be judicially noticed and in determining the matter of law to be judicially noticed, the court may consider any testimony, document, information or argument on the subject, whether offered by a party or discovered through its own research. Whether or not judicial notice is taken, a printed copy of a statute or other written law or a proclamation, edict, decree or ordinance by an executive contained in a book or publication, purporting to have been published by a government or commonly admitted as evidence of the existing law in the judicial tribunals of the jurisdiction where it is in force, is prima facie evidence of such law and the unwritten or common law of a jurisdiction may be proved by witnesses or printed reports of cases of the courts of the jurisdiction.

> Dismissal pursuant to CPLR 3211 (a)(1) is warranted only if the documentary evidence submitted "utterly refutes plaintiff's factual allegations" (Goshen v Mutual Life Ins. Co. of NY, 98 NY2d 314, 326, 774 N.E.2d 1190, 746 N.Y.S.2d 858 [2002] [**5] ; see also Greenapple v Capital One, N.A., 92 AD3d 548, 550, 939 N.Y.S.2d 351 [1st Dept 2012]), and "conclusively establishes a defense to the asserted claims as a matter of law" (Weil, Gotshal & Manges, LLP, 10 AD3d at 271 [internal quotation marks omitted]). To be considered "documentary," evidence must be unambiguous and of undisputed authenticity (Fontanetta v Doe, 73 AD3d 78, 86, 898 N.Y.S.2d 569 [2d Dept 2010], citing Siegel, Practice Commentaries, McKinney's Cons. Laws of NY, Book 7B, CPLR C3211:10, at 21-22). If the documentary evidence disproves an essential allegation of the complaint, dismissal pursuant to CPLR 3211 (a) (1) is warranted even if the allegations, standing alone, could withstand a motion to dismiss for failure to state a cause of action (see McGuire v Sterling Doubleday Enters., L.P., 19 AD3d 660, 661, 799 N.Y.S.2d 65 [2d Dept 2005])
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> *Buch v Teman*, 2019 N.Y. Misc. LEXIS 4218, *11.

The affidavit of Mr. Anci does not authenticate the exhibits appended to plaintiffs engorged motion. Nor are the transcripts annexed to that affidavit Orders of any Court. Moreover, those transcripts do not refute the allegations of the Complaint.

II.

DEFENDANTS BREACHED THEIR CONTRACT TO PAY SEVERANCE

EHA undertook in writing to pay severance to any employee terminated without cause. (Dkt no. 2, ¶¶'s 72-82.) (Daszak Aff., Exh 3 at 36-38) Defendants now claim that no contract of

employment exists. That argument is beside the point. Plaintiff does not allege he is entitled to anything other than his severance. Nor does plaintiff allege he is entitled to reinstatement. Plaintiff seeks the severance he was granted under the EHA employee handbook.

To avoid the consequences of their written agreement with all of EHA's employees as set forth in the EHA Employee Handbook, defendants now claim the plaintiff has failed to state a claim because he was an employee at will. That argument mistakes both the law and the facts. To support that argument defendants rely upon a host of utterly inapposite authorities.

As set forth in the attached EHA handbook (Daszak Affidavit at Exh.3 ¶ 25.7 at p. 38, EHA contracted to pay severance of two weeks per year to plaintiff for every year he served EHA as an employee. Defendants honored that contract as to all employees, except plaintiff.

As set forth in the accompanying affidavit of Dr. Peter Daszak, the defendant EHA admitted its liability to plaintiff in at least two financial statements. (Daszak Aff., ¶ 3, Exh. 1 and 2). Moreover, defendants honored this contractual obligation by paying severance to each of the employees terminated. (Verified Complaint, ¶ 64, Exh. 3.) (Dkt. no. 2) Now, to suit their motion to dismiss, defendants would avoid their written contractual undertaking, claiming that no such undertaking exists. That argument is counterfactual and lacks merit.

Defendants conduct in terminating plaintiff as a member of

the Board, lends enormous credence this claim. Plaintiff was purportedly terminated from the Board in blatant violation of EHA's by-law[2].

III.

DEFENDANTS' MOTION TO DISMISS THE AGE DISCRIMINATION CLAIMS ASSERTED UNDER THE NYSHRL AND NYCHRL FAILS

The Complaint before the Court alleges that the plaintiff's employment was terminated on the basis of his age. The Complaint demonstrates by reference to a detailed census of the employees terminated that he was the most senior, the eldest and most highly qualified EHA employee. Ignoring and mis-characterising the Complaint, defendants now claim that the Complaint is based solely upon so-called bare legal conclusions. This argument should be rejected.

As the Appellate Division for this Department has held:

> The Supreme Court also properly denied that branch of the defendants' motion which was pursuant to CPLR 3211 (a) to dismiss the cause of action alleging age discrimination in violation of the NYSHRL and the NYCHRL. Accepting the facts as alleged in the amended complaint as true, and according the plaintiff the benefit of every favorable inference, the allegations were sufficient to give rise to an

[2] Defendants failure to adhere to their own by-laws is illustrated by their failure to terminate plaintiff as a member of the Board until months after he was cashiered by the sham EHA Board. Defendants simply failed to advise the Secretary of State of the Commonwealth of Massachusetts that Plaintiff no longer served on EHA's Board until June 2025, which was six months after he was purportedly cashiered without a hearing or any opportunity to be heard in January 2025. This slovenly behavior is typical of the the Board Defendants conduct.

> inference of discrimination based upon age (see Hosking v Memorial Sloan-Kettering Cancer Ctr., 186 AD3d 58, 67, 126 NYS3d 98 [2020]; Grella v St. Francis Hosp., 149 AD3d 1046, 1048, 53 NYS3d 330 [2017]; Melman v Montefiore Med. Ctr., 98 AD3d 107, 115, 946 NYS2d 27 [2012]). The appellants' argument concerning [***7] the age of the male employee who allegedly was initially considered for the position of Circulation Business Head was improperly raised for the first time in the defendants' reply papers, and there is no indication that the plaintiff was afforded the opportunity to submit a sur-reply. Therefore, the argument is not properly before the Court (see Grocery Leasing Corp. v P&C Merrick Realty Co., LLC, 197 AD3d 625, 627, 153 NYS3d 98 [2021]; Gottlieb v Wynne, 159 AD3d 799, 801, 74 NYS3d 46 [2018]).
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> *Ayers v. Bloomberg, L.P.*, 203 A.D.3d 872, 875

In short, the test on this motion, under the governing law, is not, as defendants would have it, whether the plaintiff was terminated for good cause. The test, instead is: has the plaintiff stated a cause of action. As the United States Court of Appeals held in Court held in *Flanagan v. Girl Scouts of Suffolk Cnty., Inc.*, 2025 U.S. App. LEXIS 12747 (2nd Cir. 2025).

> To the extent that Defendants attempt to identify legitimate reasons for Mastrota's actions or argue that Mastrota's motivation for treating Grant differently was perceived nepotism, we emphasize that, at the ***motion to dismiss*** stage, "we are primarily concerned with whether there is minimal support for the proposition that the employer was motivated by discriminatory intent, and not with questions as to which the defendants bear the burden of production, such as whether there existed non-pretextual, nondiscriminatory explanations for the defendants' employment

> decisions." *Buon v. Spindler*, 65 F.4th 64, 85 (2d Cir. 2023) (alteration adopted) (internal quotation marks and citations omitted). Moreover, although Defendants suggest that the potential non-discriminatory motivations for the adverse actions make it impossible to plausibly allege that discrimination was the "but-for" cause of such actions, we disagree. "[E]ven under the more stringent 'but-for' ***standard***, a defendant cannot avoid liability just by citing some *other* factor that contributed to its challenged employment decision. So long as the plaintiff's [race] was one but-for cause of that decision, that **[*13]** is enough to trigger the law." *Radwan v. Manuel*, 55 F.4th 101, 131 (2d Cir. 2022) (internal quotation marks and citation omitted). As explained above, the amended complaint alleges, among other things, that Grant was demoted for reasons unrelated to his performance and was treated differently than other directors in terms of his salary reduction and differently than a Caucasian manager in terms of his title. These allegations plausibly plead that unlawful discrimination was at least "one but-for cause" of the adverse employment actions. *Id.*
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> Because Grant plausibly alleges a race discrimination claim under Section 1981, his ***NYSHRL*** claim must *a fortiori* also pass muster under the "more liberal pleading ***standard***" applicable to claims brought under that statute. *Qorrolli*, 124 F.4th at 123.

Flanagan v. Girl Scouts of Suffolk Cnty., Inc., 2025 U.S. App. LEXIS 12747 (2nd Cir. 2025)

IV.

THE DIRECTORS OF A NOT FOR PROFIT CORPORATION ARE NOT IMMUNE FROM LIABILITY UNDER NYSHRL AND NYCHRL: DEFENDANTS' ENJOYED NO IMMUNITY TO DISCRIMINATE AGAINST THE PLAINTIFF BECAUSE HE IS OLD.

Section 719 of NY CLS N-PCL § 719 as follows:

§ 719. Liability of directors in certain cases

(a) Directors of a corporation who vote for or concur in any

> of the following corporate actions shall be jointly and severally liable to the corporation for the benefit of its creditors or members or the ultimate beneficiaries of its activities, to the extent of any injury suffered by such persons, respectively, as a result of such action, or, if there be no creditors or members or ultimate beneficiaries so injured, to the corporation, to the extent of any injury suffered by the corporation as a result of such action:
>
> ***
>
> **(f) This section shall not affect any liability otherwise imposed by law upon any director or officer.**

NY CLS N-PCL § 719(f) (emphasis added).

In *Rivera v. Fortune Socy., Inc.*, 2024 N.Y. Misc. LEXIS 1814, the Court held as follows:

> The court finds that plaintiff has alleged sufficient facts to survive defendants' motion to dismiss. Plaintiff alleges that he was a member of a protected class, qualified to hold the position that he was in and both suffered adverse employment actions or actions that disadvantaged him. Specifically, plaintiff claims that he was given negative performance evaluations without basis, was underpaid in comparison to similarly situated non-Native American and/or non-Hispanic coworkers, was replaced by a younger report who was favored and [*14] groomed after plaintiff's alleged constructive discharge and that Chavis micro managed his work and made public, disparaging comments about plaintiff with regards to, inter alia, his Native American race/national origin. The court rejects defendants' contention that these acts are insufficient to give rise to an inference of discrimination. **Indeed, at this stage of the litigation, plaintiff need only allege sufficient facts when reading the complaint in the most favorable light, a burden plaintiff has easily met here.**
>
> *Rivera v. Fortune Socy., Inc.*, 2024 N.Y.

Misc. LEXIS 1814, *13-14 SUPREME Court NY Co. (April 9, 2024)(emphasis added.)

In the instant case, as in *Rivera*, the plaintiff Dr. Daszak has alleged that he was the eldest, most highly compensated and most qualified EHA employee and that he was terminated because of his age and without cause. In this case, as in Rivera, the plaintiff has "easily" met his pleading burden. Accordingly, the motion to dismiss should be denied.

Defendants' reliance on *Johnson v. Black Equity Alliance* is misplaced. As that Court held:

> In order to prevail against an assertion of immunity, the plaintiff must demonstrate a "reasonable probability" that the Individual Defendants' conduct constitutes either gross negligence or was intended to cause harm. Thome v The Alexander & Louisa Calder Foundation, 70 AD 3d 88, 890 N.Y.S.2d 16 (1st Dept 2009). The conclusory averments of plaintiff appearing in her complaint and opposition papers fall far short of satisfying this burden (see Pontarelli v Shapero, 231 AD2d 407, 647 N.Y.S.2d 185, supra).
>
> *Johnson v. Black Equity Alliance, Inc.*, 26 Misc. 3d 1219(A).

In the instant case, the Verified Complaint alleges that the individual defendants conspired, confederated and agreed to strip Plaintiff Daszak of his rights under New York law in order to cause him emotional distress, loss of employment, financial hardship and deprive him of his rights under the NYSHRL and the NYCHRL. These are not conclusory allegations. At this stage of the proceedings, and before discovery, the precise manner in

which the defendants worked covertly to effect that harm are unknown. However, it is known that the defendants acted in unison to ambush the defendant and summarily terminated the plaintiffs' employment as both a Board member and as an employee. Notably, the defendants have offered no affidavits demonstrating that any of them dissented from the Board's unlawful conduct.

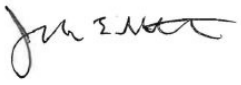
V.

CONCLUSION

For all the reasons set forth above, and in the accompanying affidavit of Dr. Peter Daszak, the motion to dismiss should be denied in all respects. If the Court deems the Complaint in any respect deficient, Plaintiff hereby request leave to re13plead and amend the Verified Complaint.

Dated: New York, New York
May 18, 2026

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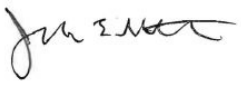
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CERTIFICATE OF COMPLIANCE

Pursuant to Section 202.8-b of the Uniform Civil Rules for the Supreme Court and the County Court, I certify that the accompanying Memorandum of Law, which was prepared using Courier New 12-point typeface, contains 2,515 words, excluding the parts of the document that are exempted (i.e., captions, tables of contents, tables of authorities, and signature block). This certification is made in reliance on the "word count" of the word-processing system (WordPerfect) used to prepare the document.

Dated: New York, New York
May 18, 2026

LAW OFFICES OF JOSEPH E. GASPERETTI



By: Joseph E. Gasperetti

Attorneys for Plaintiff Dr. Daszak